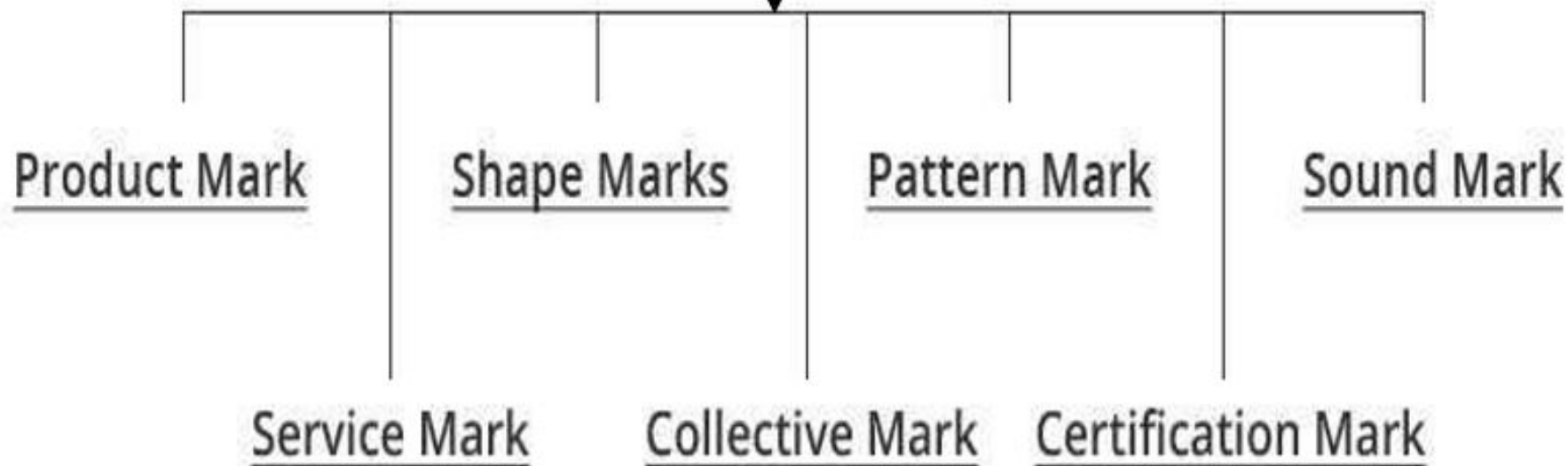


Types of Trademarks

TYPES OF TRADEMARK IN INDIA



Product Mark

- Similar to trademark
- Identify the products or goods instead of services
- Product is the unique selling feature of the company
- Initially, TM, which states that the mark is not yet registered.
- Once they are registered, they have to use ®.

Examples: Pepsi®, Maggi®, PHILIPS® etc.



Examples of Product Marks:

- Apple's Logo
- Nike's Swoosh
- Coca-Cola

Service Mark

- Identify and distinguish the services rather than the products
- Symbol is SM and not TM.

Features of a Service Mark

1. Service Identification
2. Source Indicator
3. Non-Tangible Association

Examples of Service Marks:

- FedEx:
- McDonald's Golden Arches
- Netflix
- American Airlines Logo

A very prominent **example** is McDonald's, which is a service mark for restaurant services.



Collective Mark

- A **collective mark** is owned by a collective
- Identify their goods and services
- Distinguish their goods and services from those of non-members
- Indicate membership in the group.

Examples



Certification marks

Define "standard" of goods and services.

Examples of common certification marks include:

- Agricultural Marketing Certification – FSSAI
- FSSAI Mark (Food Safety and Standards Authority of India)
- Hallmark (BIS - Bureau of Indian Standards)
- Energy Star (U.S. Environmental Protection Agency - EPA)



Shape Marks

- Type of trademark that protects the three-dimensional shape
- Configuration of a product or its packaging
- Granted when the shape of the product itself is distinctive and capable of functioning as a source identifier for consumers
- Non-traditional trademarks because they go beyond the standard text or logo-based trademarks.



Pattern Mark

- Trademark that protect a specific pattern or design
- Pattern or design used consistently to identify the source of goods or services

Examples of Pattern Marks

- Gucci GG Pattern
- Louis Vuitton (LV Damier & Monogram Patterns) – France
- Burberry Check Pattern – UK
- Rolex Jubilee Bracelet Pattern – Switzerland
- Adidas Three-Stripes Pattern – Germany



Example 1

Pattern Mark



Product



Example 2

Sound Mark

- Trademark that protect a specific sound or combination of sounds
- Sounds used to identify and distinguish the goods or services of a particular brand
- Segistered when the sound is distinctive enough to be recognized by consumers



- Examples are:
 - ICICI Bank Tune
 - Titan Watch Tune
 - **Nokia Tune**
 - Airtel Theme Tune
 - Windows Startup Sounds

Benefits of Registration of a trademark

- Registration is prima facie evidence of proprietorship of the trademark
- It gives the exclusive right to use the trademark in respect of goods/services; and to take legal action in case of infringement
- The registered proprietor may assign or license the trademark as any other property
- The registered proprietor can enjoy the Goodwill associated with registered trademark forever, if the mark is renewed from time to time